

		Code, section 1060 provides that “the owner of a trade secret has a privilege to refuse to disclose the secret ... if the allowance of the privilege will not tend to conceal fraud or otherwise work injustice.” Evidence Code, section 1060 cannot be used as a basis for outright refusal to produce the documents Defendant is required to produce pursuant to Code of Civil Procedure, section 871.26, subdivision (h)(6), (7), (8), (11) and (12). There is no genuine dispute that these categories of documents are directly relevant to one or more elements of Plaintiffs’ claims. Namely, Defendant agreed that the privilege is not absolute as to these categories by agreeing to produce the materials subject to a protective order. But the issue here is not whether Defendant’s invocation of trade secret privilege is legitimate. The issue is whether Defendant’s eleventh hour invocation of this privilege provides good cause to deny sanctions under Section 871.26, subdivision (j)(1). It does not. Nowhere in Section 871.26 does it provide that the 60-day deadline to comply can be satisfied by anything less than a complete response. Defendant has recognized that it cannot properly withhold these purported trade secret documents from production; this is shown by the offer to produce the documents subject to a protective order. Since Defendant failed to act diligently to obtain Plaintiffs’ assent to the stipulated protective order, or otherwise obtain a protective order, Defendant failed to provide all documents called for in Section 871.26, subdivision (h) within the 60 days required by subdivision (b). Had Defendant shown diligent efforts to obtain entry of the stipulated protective order within the 60 day time frame, the Court likely would have found good cause to excuse the sanctions award under Subdivision (j)(1). What is before the court, however, is a showing that Defendant failed to undertake appropriate efforts to timely comply with Section 871.26 with reasonable diligence. Defendant’s failure to promptly act does not warrant the conclusion that Section 871.26 operates to force Defendant to waive any privilege. The motion is granted. Counsel for Defendant Kia America, Inc. shall pay monetary sanctions in the amount of \$2,500 within fifteen business days of this ruling. Plaintiffs to give notice.
7.	MAKA VS. AMERICAN HONDA MOTOR CO., INC. 2023-01325822	MOTION TO TAX COSTS Defendant American Honda Motor Co., Inc.’s Motion to Strike/Tax Plaintiffs’ Costs is GRANTED. Defendant moves to tax and/or strike Plaintiffs’ costs by \$387.95 as follows:

		• Item No. 1: Filing and Motion Fees – \$9.00; • Item No. 14: Fees for Electronic Filing or Service – \$40.25; • Item No. 15 – Other (Courtesy Copies) – \$273.70; • Item No. 15 – Other (Appearance Attorneys) – \$65.00. After fulling considering the motion, opposition, and reply, the Court grants Defendant’s motion for the reasons stated therein.
8.	ZIMMER VS. UNITED DOMINION REALTY TRUST, INC. 2025-01511185	DEMURRER TO COMPLAINT Stephanie Catanach’s Demurrer is MOOT. Catanach was dismissed with prejudice on July 6, 2026 pursuant to a signed stipulation. Thus, she is no longer a defendant to this lawsuit and her demurrer is moot.
9.	CONSOLIDATED ELECTRICAL DISTRIBUTORS, INC. VS. SOLAR 360 BUILDING SERVICES, INC 2025-01451997	MOTION FOR AN ORDER TO SUBSTITUTE ATTORNEY Plaintiff Consolidated Electrical Distribution, Inc.’s Motion to Substitute Its Attorney of Record is GRANTED. Samantha R. Rikken, Esq. of Gibbs Giden Locher Turner Senet & Wittbrodt LLP is ORDERED substituted in as counsel of record for Plaintiff. “The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination, as follows: [¶] Upon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284.) “It has long been recognized in this state that the client’s power to discharge an attorney, with or without cause, is absolute.” (<i>Fracasse v. Brent</i> (1972) 6 Cal.3d 784, 790.) Plaintiff’s credit manager states in his declaration it is Plaintiff’s intention to substitute Rikken for prior counsel Michael I. Wayne, Esq. of Law Offices of Michael I. Wayne APC after losing contact with Wayne. (Johnson Decl., ¶¶ 5-8.)
10.	HALBERDA VS. HIDDEN CANYON ESTATES HOMEOWNERS ASSOCIATION 2022-01299111	MOTION TO DISMISS Defendants John Alevizos and Georgia Alevizos’s (the Alevizoses) Motion to Dismiss and Enter Judgment is GRANTED. The Court exercises its discretion to dismiss the action as to the Alevizoses only after all issues as to the Alevizoses have been dismissed pursuant to this Court’s May 19, 2026, ruling on demurrer. (Code Civ. Proc., § 581(f)(1); <i>Cano v. Glover</i> (2006) 143 Cal.App.4th 326, 329.) Additionally, the Court finds it is in the interests of justice, judgment be entered as to the Alevizoses only. (Code Civ. Proc., § 578.) This order is appealable because it resolves all issues between the